

Company number 09965297  
**PRIVATE COMPANY LIMITED BY SHARES**  
**WRITTEN RESOLUTIONS**

MONDAY



RM

19/02/2018

#56

COMPANIES HOUSE

of

**ALPHA FMC TOPCO LIMITED (the "Company")**

**2 OCTOBER 2017 (the "Circulation Date")**

Pursuant to Chapter 2 of Part 13 of the Companies Act 2006 (the "2006 Act"), the directors of the Company propose that the resolutions below are passed as ordinary resolutions and special resolutions, as indicated (the "Resolutions").

The actions approved by each of the Resolutions will, if passed, take effect immediately prior to admission of the Company's ordinary shares to trading on the AIM market of the London Stock Exchange ("Admission"). If Admission has not occurred by 31 October 2017 the authority given by these Resolutions (if passed) shall automatically and immediately lapse, and shall cease to be of any further force and effect.

Unless otherwise defined in this document, capitalised terms used in this document have the meaning given to them in the Articles.

For the purposes of the Resolutions the following words and expressions shall have the following meanings:

**"A Loan Note Instrument"** means the instrument of Midco constituting the A Loan Notes

**"A Loan Notes"** means the £41,078,326 of unsecured A loan notes constituted by Midco and evidenced by the A Loan Note Instrument

**"Articles"** means the articles of association of the Company.

**"A Shares"** means the A shares of £0.00001 each in the capital of the Company.

**"B1 Shares"** means the B1 shares of £0.00001 each in the capital of the Company.

**"B2 Shares"** means the B2 shares of £0.00001 each in the capital of the Company.

**"C1 Shares"** means the C1 shares of £0.00001 each in the capital of the Company.

**"C2 Shares"** means the C2 shares of £0.00001 each in the capital of the Company.

**"D Shares"** means the D shares of £1.00 each in the capital of the Company.

**"Equity Shares"** means the A shares, B1 shares, B2 shares, C1 shares, C2 shares, D shares and F shares each in the capital of the Company, all such shares having the respective rights and being subject to the respective restrictions attaching thereto under the Articles as in force on the date of these Resolutions.

**"F Shares"** means the F shares of £0.00001 each in the capital of the Company.

**"Loan Note Conversion"** means the conversion of the A Loan Notes, the Midco B Loan Notes and the Topco B Loan Notes into new ordinary shares in the capital of the Company

in accordance with the A Loan Note Instrument, the Midco B Loan Note Instrument and the Topco B Loan Note Instrument respectively.

**"Midco 4 Roll-up"** means the transfer of all of the B shares in the capital of Alpha FMC Midco Limited to the Company by Alpha FMC Group Nominees Limited in consideration for the issue by the Company to Alpha FMC Group Nominees Limited of new ordinary shares in the capital of the Company.

**"Midco"** means Alpha FMC Midco Limited.

**"Midco B Loan Note Instrument"** means the instrument of Midco constituting the Midco B Loan Notes.

**"Midco B Loan Notes"** means the £1,035,444 of unsecured Midco B loan notes constituted by Midco and evidenced by the Midco B Loan Note Instrument.

**"Ordinary Share"** means an ordinary share of £0.000005 each in the capital of the Company.

**"Preference Share Conversion"** means the conversion of the Preference Shares into ordinary shares in the capital of the Company in accordance with the Articles.

**"Preference Shares"** means the preference shares of £0.000005 each in the capital of the Company, all such shares having the respective rights and being subject to the respective restrictions attaching thereto under the Articles.

**"Redeemable Deferred Shares"** means redeemable deferred shares of £0.000005 each in the capital of the Company which shall have the rights and shall be subject to the restrictions set out in the Articles.

**"Topco B Loan Note Instrument"** means the instrument of the Company constituting the Topco B Loan Notes.

**"Topco B Loan Notes"** means the £12,362,087 of unsecured Topco B loan notes constituted by the Company and evidenced by the Topco B Loan Note Instrument.

## **SPECIAL RESOLUTIONS**

### **RESOLUTION 1**

**THAT**, in accordance with section 618 of the Act, the Equity Shares, be consolidated and divided on the following basis:

- (a) in the case of all A Shares, each group of eleven A Shares will be consolidated and divided into:
  - (i) one A Share; and
  - (ii) 20 Redeemable Deferred Shares;
- (b) in the case of all B1 Shares, each group of eleven B1 Shares will be consolidated and divided into:
  - (i) one B1 Share; and

- (ii) 20 Redeemable Deferred Shares;
- (c) in the case of all B2 Shares, each group of eleven B2 Shares will be consolidated and divided into:
  - (i) one B2 Share; and
  - (ii) 20 Redeemable Deferred Shares;
- (d) in the case of all C1 Shares, each group of eleven C1 Shares will be consolidated and divided into:
  - (i) one C1 Share; and
  - (ii) 20 Redeemable Deferred Shares;
- (e) in the case of all C2 Shares, each group of eleven C2 Shares will be consolidated and divided into:
  - (i) one C2 Share; and
  - (ii) 20 Redeemable Deferred Shares;
- (f) in the case of the D Shares, each group of eleven D Shares will be consolidated and divided into:
  - (i) one D Share; and
  - (ii) 2,000,000 Redeemable Deferred Shares,
- (g) in the case of all F Shares, each group of eleven F Shares will be consolidated and divided into:
  - (i) one F Share; and
  - (ii) 20 Redeemable Deferred Shares.

## **RESOLUTION 2**

**THAT**, in accordance with section 618 of the Act, conditional on and with effect immediately following the consolidation of the Equity Shares pursuant to Resolution 1, the Equity Shares be sub-divided on the following basis:

- (a) in the case of all A Shares, each A Share will be sub-divided into:
  - (i) one Ordinary Share; and
  - (ii) one Redeemable Deferred Share;
- (b) in the case of all B1 Shares, each B1 Share will be sub-divided into:
  - (i) one Ordinary Share; and

- (ii) one Redeemable Deferred Share;
- (c) in the case of all B2 Shares, each B2 Share will be sub-divided into:
  - (i) one Ordinary Share; and
  - (ii) one Redeemable Deferred Share;
- (d) in the case of all C1 Shares, each C1 Share will be sub-divided into:
  - (i) one Ordinary Share; and
  - (ii) one Redeemable Deferred Share;
- (e) in the case of all C2 Shares, each C2 Share will be sub-divided into:
  - (i) one Ordinary Share; and
  - (ii) one Redeemable Deferred Share;
- (f) in the case of the D Shares, each D Share will be sub-divided into:
  - (i) one Ordinary Share; and
  - (ii) 199,999 Redeemable Deferred Shares; and
- (g) in the case of all F Shares, each F Share will be sub-divided into:
  - (i) one Ordinary Share; and
  - (ii) one Redeemable Deferred Share.

## **ORDINARY RESOLUTIONS**

### **RESOLUTION 3**

**THAT**, conditional on and with effect immediately following the subdivision of the Equity Shares pursuant to Resolution 2, the directors be and are hereby generally and unconditionally authorised pursuant to section 551 of the 2006 Act to exercise all or any powers of the Company to allot up to 48,000,000 new ordinary shares of £0.000005 each in connection with and for the purposes of the Midco 4 Roll-up, the Loan Note Conversion and the Preference Share Conversion (the "Conversion Shares"), provided that this authority shall expire (unless previously renewed, varied or revoked by the Company in general meeting or by written resolution) on the fifth anniversary of the date of this resolution.

### **RESOLUTION 4**

**THAT**, conditional on and with effect immediately following the issue of the Conversion Shares pursuant to Resolution 3, the sum of £69,250 being part of the profit and loss account of the Company be and is hereby capitalised and appropriated as capital to the holders of ordinary shares, as appearing in the register of members immediately following

the issue of the Conversion Shares and that the directors be and are hereby authorised to apply such sum in paying up in full up to 13,850,000 ordinary shares of £0.000005 each (the "Bonus Shares"), in each case at the rate of 149 new ordinary shares for every existing ordinary share held by them.

#### **RESOLUTION 5**

**THAT** the directors be and are hereby generally and unconditionally authorised pursuant to section 551 of the 2006 Act to exercise all or any powers of the Company to allot the Bonus Shares, provided that this authority shall expire (unless previously renewed, varied or revoked by the Company in general meeting or by written resolution) on the fifth anniversary of the date of this resolution.

#### **RESOLUTION 6**

**THAT**, in accordance with section 618 of the Act, and conditional on and with effect from the issue of the Bonus Shares pursuant to Resolutions 4 and 5, the ordinary shares in the capital of the Company be consolidated such that each 150 ordinary shares of £0.000005 each will be consolidated into one new ordinary share with a nominal value of £0.00075.

## AGREEMENT

Please read the notes at the end of this document before signifying your agreement to the Resolutions.

The undersigned, the persons entitled to vote on the above Resolutions hereby irrevocably agree to the Resolutions:

  
.....  
Alpha ~~EMG~~ Group Nominees Limited

Date 2 OCTOBER 2017.....

.....  
acting in his capacity as a member of Dunedin  
LLP acting in its capacity as designated member  
of Dunedin (General Partner III) LLP acting in its  
capacity as general partner of Dunedin Buyout  
Fund III LP

Date .....

## AGREEMENT

Please read the notes at the end of this document before signifying your agreement to the Resolutions.

The undersigned, the persons entitled to vote on the above Resolutions hereby irrevocably agree to the Resolutions:

..... Date .....

Alpha FMC Group Nominees Limited

*Mark [signature]* ..... Date 2 OCTOBER 2017 .....

acting in his capacity as a member of Dunedin  
LLP acting in its capacity as designated member  
of Dunedin (General Partner III) LLP acting in its  
capacity as general partner of Dunedin Buyout  
Fund III LP

## NOTES

- 1 You can choose to agree to all the Resolutions or none of them but you cannot agree to only one of the Resolutions. If you agree to all of the Resolutions, please indicate your agreement by signing and dating this document where indicated opposite your name above and returning it to the Company using one of the following methods:

- **By Hand:** delivering the signed copy to the registered office of the Company.
- **By Post:** returning the signed copy by post to the registered office of the Company.

If you do not agree to the Resolutions, you do not need to do anything: you will not be deemed to agree if you fail to reply.

- 2 Once you have indicated your agreement to the Resolutions, you may not revoke your agreement.
- 3 Unless, by 28 days from the Circulation Date (as defined above), sufficient agreement has been received for the Resolutions to pass, they will lapse. If you agree to these Resolutions, please ensure that your agreement reaches us before or during this date.
- 4 In the case of joint holders of shares, only the vote of the senior holder who votes will be counted by the Company. Seniority is determined by the order in which the names of the joint holders appear in the register of members.

If you are signing this document on behalf of a person under a power of attorney or other authority please send a copy of the relevant power of attorney when returning this document.